

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Santosh Prakash	Team: Squad #08	CCRB Case #: 201700942	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 02/05/2017 5:27 PM	Location of Incident: In front of 186 Van Courtland Park South; at Route 87 and Van Courtland Park South.	18 Mo. SOL 8/5/2018	Precinct: 50
Date/Time CV Reported Mon, 02/06/2017 3:08 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/06/2017 3:08 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Richard Planamenta	820	957042	050 PCT
2. POM Johan Hernandez	10107	956732	050 PCT
3. POF Nelida Perez	09551	961093	050 PCT
4. POM David Velez	26965	946365	050 PCT
5. POF Francia Peralta	02148	930926	050 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT James Boyle	2959	945518	050 PCT
2. POM Anthony Pepdjonovic	19746	959057	050 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Nelida Perez	Abuse: In front of 186 Van Courtland Park South, Police Officer Nelida Perez stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM David Velez	Abuse: In front of 186 Van Courtland Park South, Police Officer David Velez stopped the vehicle in which § 87(2)(b) was an occupant.	B . Exonerated
C . POM David Velez	Discourtesy: In front of 186 Van Courtland Park South, Police Officer David Velez spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POM David Velez	Abuse: In front of 186 Van Courtland Park South, Police Officer David Velez searched the vehicle in which § 87(2)(b) was an occupant.	D . Substantiated
E . POM Richard Planamenta	Abuse: At Route 87 and Van Courtland Park South, Police Officer Richard Planamenta stopped the vehicle in which § 87(2)(b) was an occupant.	E . Exonerated
F . POM Johan Hernandez	Abuse: At Route 87 and Van Courtland Park South, Police Officer Johan Hernandez stopped the vehicle in which § 87(2)(b) was an occupant.	F . Exonerated
G . POM Richard Planamenta	Abuse: At Route 87 and Van Courtland Park South, Police Officer Richard Planamenta drew his gun.	G . Exonerated

Officer(s)	Allegation	Investigator Recommendation
H . POM Richard Planamenta	Force: At Route 87 and Van Courtland Park South, Police Officer Richard Planamenta pointed his gun.	H . Unsubstantiated
I . POM Richard Planamenta	Force: At Route 87 and Van Courtland Park South, Police Officer Richard Planamenta used physical force against § 87(2)(b)	I . Unfounded
J . POM Richard Planamenta	Abuse: At Route 87 and Van Courtland Park South, Police Officer Richard Planamenta refused to provide his shield number to § 87(2)(b)	J . Unfounded
K . POF Francia Peralta	Abuse: At Route 87 and Van Courtland Park South, Police Officer Francia Peralta threatened to arrest § 87(2)(b)	K . Unfounded
L . POF Francia Peralta	Abuse: At Route 87 and Van Courtland Park South, Police Officer Francia Peralta interfered with § 87(2)(b)'s use of a recording device.	L . Unfounded

Case Summary

On February 5, 2017, at approximately 5:27 pm, outside 186 Van Courtland Park South, § 87(2)(b) was stopped for reckless driving by PO David Velez and PO Nelida Perez (of the 50th Precinct). **(Allegations A, B)** When § 87(2)(b) denied driving recklessly, PO Velez allegedly called him a “smartass.” **(Allegation C)** After determining that § 87(2)(b) was driving without identification, PO Velez and PO Perez placed him under arrest, and secured him in their RMP in handcuffs. At this time, PO Velez conducted a search of the vehicle (which was never vouchered as arrest evidence). **(Allegation D)** Leaving the vehicle at the scene, the officers then removed § 87(2)(b) to the 50th Precinct stationhouse and eventually released him, at approximately 6:50 p.m., with a summons for § 87(2)(b), when his brother § 87(2)(b) arrived with his driver’s license. (BR13)

At approximately 7:08 p.m. the same night, § 87(2)(b) returned to 186 Van Courtland Park South, where the officers had left his vehicle, and proceeded to leave the scene. But before he got far down on Van Courtland Park South, § 87(2)(b) was stopped again for reckless driving by a second group of officers, PO Richard Planamenta and PO Johan Hernandez (also of the 50th Precinct). **(Allegations E, F)** PO Planamenta had his gun drawn during the stop **(Allegation G)** Allegedly, he also had it pointed at § 87(2)(b) **(Allegation H)** In the process of removing and handcuffing him, PO Planamenta allegedly slammed § 87(2)(b) against the vehicle. **(Allegation I)** § 87(2)(b) was again arrested and placed in their RMP.

§ 87(2)(b) happened to be passing through the area at the time of stop and observed PO Planamenta and PO Hernandez approaching § 87(2)(b)’s vehicle. § 87(2)(b) pulled over and began recording the arrest, and approached the officers once § 87(2)(b) was in the RMP. When § 87(2)(b) asked PO Planamenta for his shield number, he allegedly refused to provide it. **(Allegation J)** § 87(2)(b) continued to record the scene as two additional RMPs responded. At some point, PO Francia Peralta (of the 52nd Precinct), identified by the investigation as one of the responding officers, allegedly instructed § 87(2)(b) to stop recording. **(Allegation K)** PO Peralta also allegedly threatened to arrest § 87(2)(b) if he did not step back from the officers. **(Allegation L)** § 87(2)(b) was returned to the stationhouse, charged with § 87(2)(b) and processed through Central Booking. (BR 14)

§ 87(2)(b)’s video recording captures the scene of the arrest and the subject officers, but does not document any of the allegations. (BR03, BR04)

Mediation, Civil and Criminal Histories

§ 87(2)(b) and § 87(2)(b) rejected mediation. No notice of claim has been filed in regards to the incident. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed no prior complaints. § 87(2)(b)
- PO David Velez has been a member of service for 9 years: during this time, he has been a subject in 2 prior CCRB cases, on 3 allegations, none of which were substantiated. § 87(2)(g)
- PO Nelida Perez has been a member of service for 1 year: she is a subject in 1 active CCRB case, on 5 allegations. § 87(2)(g)
- PO Richard Planamenta has been a member of service for 2 years: he has no prior CCRB complaints.
- PO Johan Hernandez has been a member of service for 2 years: he has no prior CCRB complaints.
- PO Francia Peralta has been a member of service for 14 years: she has been a subject in one prior CCRB case, on one exonerated allegation. § 87(2)(g)

Findings and Recommendations

Allegation A: In front of 186 Van Courtland Park South, Police Officer Nelida Perez stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B: In front of 186 Van Courtland Park South, Police Officer David Velez stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation C: In front of 186 Van Courtland Park South, Police Officer David Velez spoke discourteously to § 87(2)(b)

Allegation D: In front of 186 Van Courtland Park South, Police Officer David Velez searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that PO Velez stopped and searched § 87(2)(b)'s vehicle. § 87(2)(g)

§ 87(2)(b) acknowledged that he was driving without his license at the time of the incident but denied committing any other traffic violations prior to the stop: he stated that he was travelling under the speed limit while heading south on Broadway near E. 240th Street, that he never drove recklessly, and that he pulled over for the officers promptly. § 87(2)(b) stated that he was the duly registered and insured owner of the vehicle, a two-door red Honda Civic. He stated that he pulled over curbside outside 186 Van Courtland Park South as soon as he realized he was being stopped. (BR01)

§ 87(2)(b) described the sequence of the encounter as follows. As soon as PO Velez reached his window, § 87(2)(b) told him that he was not carrying his driver's license. When PO Velez told him he was being stopped for racing, § 87(2)(b) denied it. PO Velez allegedly called § 87(2)(b) a "smartass" and asked for his registration. § 87(2)(b) advised that he was the registered owner and gave his name; but he could not immediately find the corresponding paperwork, due to the interior being "messy." When the officers went back to RMP and returned shortly thereafter, PO Velez said they could not "find his name on the database." At this time, § 87(2)(b) again started searching for the registration paperwork around the driver's seat area – specifically, the center console the driver's-side door compartment. While doing so, he briefly leaned downwards. This motion caused PO Velez to remark "what did you put under the seat?" § 87(2)(b) replied that he did not put anything under the seat. § 87(2)(b) soon found the registration paperwork and the officers went back to the RMP with it. When they returned, PO Velez told § 87(2)(b) that they were still unable to verify his identity and instructed him to exit the vehicle. § 87(2)(b) complied and PO Velez turned him around and handcuffed him. § 87(2)(b) was placed into the RMP's rear by PO Perez. (BR01)

From his position in the RMP, § 87(2)(b) then observed the following: PO Velez entered the Honda through both the driver's side and the passenger's side doors, lifted the front and rear seats up, and appeared to be searching the area under. PO Velez never asked for § 87(2)(b)'s consent. Prior to being removed from the stationhouse, when the officers asked him how to operate the vehicle's gears, § 87(2)(b) declined to explain and expressly told them that they did not have consent to enter his vehicle. § 87(2)(b) was removed to the stationhouse and eventually released with a summons for reckless driving, after his brothers came with his driver's license. (BR01)

PO Velez testified that he stopped § 87(2)(b) after observing him "racing" another vehicle on Broadway – he was travelling at a high speed and shifting lanes dangerously, moving in and out against the other vehicle. PO Velez immediately gave chase and decided to stop § 87(2)(b) by pulling him over onto Van Courtland Park South (he had to let the other vehicle go). § 87(2)(b) pulled over promptly. (BR06) In his memo book entry regarding the vehicle stop, PO Velez noted that § 87(2)(b) was: "racing s/b on Broadway & 242 with other red car, had loud exhaust, changed lanes from service lane on Broadway to far left Broadway through intersection, fighting

other sedan.” PO Velez approached the driver’s side of the vehicle, as PO Perez approached the passenger side. (BR11)

At first contact, PO Velez described § 87(2)(b)’s demeanor as “excited” – that he spoke with a “high-pitched voice” – but “cooperative.” But when PO Velez asked § 87(2)(b) for his driver’s license, § 87(2)(b) stated that he did not have it on him, and became “nervous.” PO Velez stated that § 87(2)(b) may have patted his pockets or looked briefly in the center console area for his identification, but quickly confirmed that he did not have it. § 87(2)(b) never suggested that the identification might be somewhere in the vehicle. PO Velez did not recall if § 87(2)(b) was able to produce his registration or insurance. PO Velez did not recall whether he and PO Perez returned to the RMP to conduct checks on § 87(2)(b) (BR06)

At this point, PO Velez asked § 87(2)(b) if he “had anything dangerous in the vehicle?” In response, PO Velez said that § 87(2)(b) “stuttered” “no.” PO Velez then asked § 87(2)(b) if he had any weapons in the vehicle. § 87(2)(b) said “no,” but then glanced to the rear seat. PO Velez found this “strange” and concerning and now asked § 87(2)(b) if he could search the vehicle. § 87(2)(b) said yes and agreed to exit to the rear of the vehicle with PO Peralta. PO Velez proceeded to search the vehicle as follows for under a minute: he “poked his head” inside the driver’s side door, with a knee on the seat, and looked around and under the driver’s seat and center console; he also went around and entered the front passenger-side door in the same manner, where he looked around and under the passenger seat and into a removed front panel by the radio (it contained only wiring); and he inspected the rear by looking under the seats. PO Velez noted that the interior was sparse and there were little to no items in the rear to warrant further scrutiny. PO Velez did not open any compartments, and did not recall going through any papers or documents. The search yielded nothing. Sgt. Boyle arrived on scene after the search, and instructed that § 87(2)(b) be removed to the stationhouse to verify his identity. The officers decided to leave the Honda at the location because “it was not needed.” PO Velez denied calling § 87(2)(b) a “smartass” at any point. (BR06)

PO Velez was unclear about what his intention was in searching § 87(2)(b) vehicle. PO Velez stated that he wanted to double-check that the driver’s license was not somewhere in the vehicle, since nervous motorists sometimes fail to find it. However, PO Velez also stated that he suspected there may be a weapon inside the vehicle – specifically the rear – because § 87(2)(b) looked back when asked about weapons; as such, he wanted to ensure that § 87(2)(b) could not access anything dangerous. Besides being nervous and looking back, PO Velez did not observe § 87(2)(b) make any furtive movements; his hands were always displayed and he was always compliant. Besides his reckless driving and lack of identification, PO Velez observed nothing suspicious about § 87(2)(b) or notable about the Honda. PO Velez did not know recall if he told § 87(2)(b) what he was searching for – he said he “was clear that it would be a search.” PO Velez

did not generate any consent to search documentation. (BR06) PO Velez noted in his memo book that § 87(2)(b) was placed under arrest at 5:50 pm. (BR15)

§ 87(2)(g). PO Perez stated the officers initially obtained § 87(2)(b)'s pedigree information and ran his name for warrant checks, at which time she noticed that § 87(2)(b) was opening his glove compartment and going through “some stuff.” When the warrant checks yielded no positive matches, the officers went back and asked § 87(2)(b) if he was in fact a registered driver. § 87(2)(b) said he was – that he had just left his driver’s license at home. § 87(2)(b) was no longer looking around for anything. PO Perez said that § 87(2)(b) generally appeared to be “nervous,” but did not observe anything specifically suspicious about his appearance, demeanor, or body language, until PO Velez asked him if “there was anything in the vehicle that we should be concerned about.” Corroborating PO Velez, PO Perez said that § 87(2)(b) answered “no” but “looked back” to the rear seat, possibly twice, and became more “fidgety with his body language.” PO Velez then asked § 87(2)(b) if he could search his vehicle and he agreed without hesitation. (BR09)

The warrant log for the incident shows that PO Perez ran a warrant check on § 87(2)(b) at 5:27 pm on the day of the incident. (BR11) § 87(2)(b)'s DAS Lite Summary shows several prior summonses for unlicensed operation of a vehicle, but no active warrants. (BR12)

In New York, an officer may search a vehicle as incident to an arrest only when: “[T]he circumstances give reason to believe that the vehicle or its visible contents may be related to the crime for which the arrest is being made, as possibly containing contraband or as having been used in the commission of the crime or there is reason to believe that a weapon may be discovered or access to means of escape thwarted.” (*People v. Belton*, 55 N.Y.2d 49) (BR19) As to weapons inside a vehicle, reasonable basis consists of two factors combined: “(1) movements within a car suggesting that the [motorist] was reaching for something that might be a weapon and (2) some other suggestive factor(s)...sufficient to justify the limited intrusion of searching the area where the...movements took place.” (*People v. Newman*, 96 A.D.3d 34) (BR20) But “conclusory assertions” regarding “furtive behavior” cannot validate a search; nor can the “mere nervousness” of the motorist in question. (*ibid.*) When a motorist is unable to promptly produce required documentation, and cannot be permitted to look further for safety reasons, the police are authorized to “conduct a narrowly circumscribed search for the vehicle’s paperwork in the area specified by the defendant.” (*People v. Pryor*, 26 Misc. 3d 997) (BR21)

An officer may not request consent to search a vehicle – an “exercise of the common-law right of inquiry” – without founded suspicion of criminality; this requisite is necessary even if the officer has probable cause to arrest the motorist for a traffic misdemeanor and search the motorist’s person. (*People v. Mercado*, 120 A.D.3d 441) (BR22) Furthermore: “Consent to search is voluntary when it is a true act of the will, an unequivocal product of an essentially free and

unconstrained choice. Voluntariness is incompatible with official coercion, actual or implicit, overt or subtle...whether consent has been voluntarily given or is only a yielding to overbearing official pressure must be determined from the circumstances..." (People v. Gonzalez, 39 N.Y.2d 122)

§ 87(2)(g) [Redacted text block]

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is therefore recommended that **Allegation A** be closed as **Exonerated**, **Allegation B** be closed as **Unsubstantiated**, and **Allegation C** be closed as **Substantiated**.

Allegation F: At Route 87 and Van Courtland Park South, Police Officer Johan Hernandez stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation H: At Route 87 and Van Courtland Park South, Police Officer Richard Planamenta pointed his gun.

Allegation J: At Route 87 and Van Courtland Park South, Police Officer Richard Planamenta refused to provide his shield number to § 87(2)(b)

Allegation L: At Route 87 and Van Courtland Park South, Police Officer Francia Peralta threatened to arrest § 87(2)(b)

The following facts are undisputed. At approximately 6:50 pm, after his two brothers, § 87(2)(b) and § 87(2)(b) arrived with his driver's license, § 87(2)(b) was released from the stationhouse with a reckless driving summons. § 87(2)(b) returned to 186 Van Courtland Park South, where officers had left his Honda, and began to drive away. Before getting far, at approximately 7:08 pm, § 87(2)(b)'s vehicle was again stopped by PO Planamenta and PO Hernandez, and when PO Planamenta then approached the Honda, he had his gun drawn.

§ 87(2)(b) stated that when his brothers dropped him off by the Honda and drove off, he entered his Honda and followed behind them, but briefly stopped the vehicle to attend to his cell phone. Before he resumed motion, an RMP suddenly appeared behind him, with its lights and sirens engaged, at which time: two officers exited the vehicle and ran up to his driver's side window, the officer in the lead – identified by the investigation as PO Planamenta – with his gun drawn and pointed straight at him; PO Planamenta yelled “freeze,” and opened the door, pulled him out of the vehicle, turned him around and “slammed” him chest-forward against the vehicle with force. § 87(2)(b) had not been moving around inside the vehicle prior to the officers' approach, and stayed still when PO Planamenta told him to freeze. § 87(2)(b) was not sure if PO Hernandez had also drawn his firearm. The officers handcuffed § 87(2)(b) and placed him into their RMP. At around this time, § 87(2)(b) became aware that his brothers were also present on scene. (BR01)

§ 87(2)(b) testified that he was still in the area after dropping § 87(2)(b) off and happened to be driving down the opposite side of Van Courtland Park South when he saw § 87(2)(b)'s Honda stopped on the opposite side with a police vehicle behind it. As § 87(2)(b) pulled over, PO Planamenta and PO Hernandez exited and approached the Honda in “tactical” form; in the lead, with his gun drawn and pointed towards § 87(2)(b). PO Planamenta banged on the driver's window, removed § 87(2)(b) and pushed him against the vehicle to handcuff him. At the same time, § 87(2)(b) had started video recording the scene on his cell phone, and upon crossing the street, began inquiring about what was happening. Because PO Planamenta and PO Hernandez were unresponsive, § 87(2)(b) asked PO Planamenta for his shield number. PO Planamenta said “I don't have to give it to you.” Approximately 5 minutes later, two additional RMPs responded to the scene, carrying four officers: first, officers identified by the investigation as PO Francia Peralta and PO Anthony Pepdjonovic; second, officers identified by the investigation Sgt. James Boyle and his operator. As the officers gathered and spoke in a huddle, § 87(2)(b) continued to record, standing approximately ten feet away. While doing so, PO Peralta allegedly turned to him and instructed him to stop recording. § 87(2)(b) refused to do so. PO Peralta then instructed § 87(2)(b) – who standing on the sidewalk curb – to step back away from the street or she would arrest him. § 87(2)(b) complied. (BR02)

§ 87(2)(b) provided the investigation with two video files documenting the arrest. The first recording, embedded below (next page) and 9 minutes and 36 seconds in length, begins by showing § 87(2)(b) on the other side of the street, standing outside his Honda, being handcuffed by PO Planamenta and PO Hernandez, and escorted towards the RMP(00:00-00:13). § 87(2)(b) then crosses the street and continues to record as the responding units arrive and stand-by on scene, without making substantive conversation with the officers; the video ends with PO Planamenta releasing § 87(2)(b)'s vehicle to § 87(2)(b) and stating that § 87(2)(b) is being removed to the stationhouse. (BR03) § 87(2)(g)

§ 87(2)(b). When asked in person and in

writing, § 87(2)(b) was unable to specify what allegations were recorded and when. The second recording, only approximately 30 seconds in length, features no police interactions. (BR04)



2017-05-08_12-21-33.mp4

In his CCRB testimony, PO Planamenta and PO Hernandez stated that they immediately gave chase to § 87(2)(b)'s red Honda after it pulled away from the curb at the first stop location in high speed; its tires screeching, the vehicle was moving right and left between the lanes as it went down Van Courtland Park South. PO Planamenta stated that in pursuit, he recognized that he and PO Hernandez had passed by the red Honda when it was stopped earlier by PO Velez – the officers happened to be assigned to the area on housing patrol. However, PO Planamenta had no involvement with that stop and never exited the vehicle. PO Hernandez did not recall recognizing the vehicle. (BR 15, BR18)

PO Planamenta stated that § 87(2)(b) was travelling at such a high rate of speed – approximately 40 or 50 miles an hour, where the speed limit was approximately 25 miles per hour – that it took them some time to catch up to him. PO Planamenta stated that he initially thought § 87(2)(b) was attempting to evade and flee. However, PO Planamenta eventually caught up to Honda and tailed directly behind him with lights and sirens, at which point § 87(2)(b) slowed down and pulled over on the bridge. PO Planamenta acknowledged that he approached the driver's side of the Honda in the lead with his gun drawn. PO Planamenta did not recall if PO Hernandez had his gun drawn also. Upon reaching the driver's side window, with his gun still drawn but held by side, PO Planamenta ordered § 87(2)(b) to exit the vehicle. When he did so, PO Planamenta simultaneously holstered his gun, turned him around, positioned him against the vehicle chest-forward, and handcuffed him. PO Planamenta did not recall using any force against § 87(2)(b) and denied slamming him against the vehicle. PO Planamenta approximated that he had his gun drawn for approximately five seconds and said that he did so for his own safety: since it appeared that the driver had attempted to flee “didn't know who he was, if he was running, what he was doing.” PO Planamenta said he could not see clearly into the vehicle on approach; as such, he saw § 87(2)(b) make no furtive movements. PO Planamenta recalled releasing the Honda to § 87(2)(b) at the scene, but denied refusing to provide his shield number to him. (BR15)

PO Hernandez corroborated that the Honda was stopped for speeding and reckless driving, but stated that the officers did not have to pursue it at a high-speed and that § 87(2)(b) promptly pulled over when they reached him. PO Hernandez then approached the Honda on the passenger side; on approach and at the point of contact, he saw § 87(2)(b) seated stationary with his hands displayed. PO Hernandez never drew his gun and did not think that PO Planamenta did either. PO

Hernandez corroborated that no force was used on § 87(2)(b) and did not hear PO Planamenta refuse to provide his shield number to § 87(2)(b) (BR18)

PO Peralta did not recall much of the incident, beyond responding to the scene as back-up after § 87(2)(b) was already removed and placed into the RMP. PO Peralta recalled that § 87(2)(b)'s relative was present at the scene and video recording the officers, but denied having any verbal interactions with him; she never instructed him to stop recording and never threatened him with arrest. PO Peralta observed no force used on § 87(2)(b) was not present for the execution of the stop, and heard no one refuse to provide their shield number. (BR17) PO Planamenta and PO Hernandez corroborated her account. (BR15, BR18)

Following the federal government, New York is rare to find issue with an officer's decision to display their firearm during a traffic stop, by virtue of the attendant dangers involved in any such encounter. (People v Livigni, 88 AD2d 386) (BR24) (BR24)

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§ 87(2)(g) It is therefore recommended that **Allegations E, F, and G** be closed as **Exonerated** and that **Allegation H** be closed as **Unsubstantiated**.

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§ 87(2)(g) It is therefore recommended that **Allegations I, J, K and L** be closed as **Unfounded**.

Squad: 08

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer:

Title/Signature

Print

Date